

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

MARINE TRANSPORT LOGISTICS, INC.,
ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

RESPONDENTS' RESPONSE TO
COMPLAINANTS' MOTION TO
COMPEL & RESPONDENTS'
CROSS MOTION.

The following is a response to Complainants' purported deficiencies to their requests for documents as described from page 37 of their motion to compel:

As an initial matter, the movant, Mr. Nussbaum, appears to have attached only less than half of the answers to written discovery that were served on him by the Respondents. The following are enclosed with this response that appears have been omitted by Mr. Nussbaum: Answers by MTL and co-Respondent, Raya Bakhirev, to interrogatories and requests for admissions; Exhibits #s 6 to 10 (only Exhibits #s 1 to 5 have been produced by the movant).

Demand #1

- (a) The payments receipts provided correspond to the provided invoices. Such was consistent with the Complainant's instructions. Complainants waived conducting depositions of the Respondents, therefore, it is submitted that they waive any post-deposition requests. For example, MTL's answer to interrogatory #11(d) indicates that there were telephone discussions with the Complainant. Additionally, upon information and belief, the source of such information being the individual

respondents, conversations as to allocation of money to invoices were held with Mr. Chinedu via telephone. Also see #11 in Ms. Bakhirev's answers to requests for admissions.

(d) There are numerous emails in Respondent's Exhibit #4 to the Complainant that contain, as attachments, outstanding invoices. Additionally, the initial disclosures (first attachment) contain copies of letters with proof of delivery to the Complainants.

(e) The objection raised here was predicated on the fact that since there are 17 vehicles that are the subject of the complaint, the only Bills of Lading that should be provided should relate to such vehicles. The complainants have not made allegations as to any other vehicles that they shipped through MTL because whenever they timely paid for, for example, storage, there were no issues with such vehicles.

(f) See response to 1 (e) immediately above.

(g) See response to 1(e) above.

(h) See response to 1(e) above.

(j) See response to 1(e). Additionally, Complainants state that they were provided with Dock Receipts as to 5 of the 17 subject vehicles, but they also request the remaining Dock Receipts. MTL's response to Interrogatory #4 addresses this issue. For example, if the vehicle was not shipped but rather released as junk, it would not have a dock receipt. (See, pages 56-60 of the Appendix).

(k) See response to #1(e) above. Additionally, there is irrefutable evidence that Complainants did not pay for services even though they were notified of such many times and have therefore abandoned their vehicles. (See, for example, page 55 of the

Appendix). The complaint does not allege any violations with respect to any “AES” declarations.

Demand #2

(e) Upon information and belief, the source of such information being the Respondent, Alla Solovyeva, additional time is needed to search for the invoices from the Houston warehouse. According to the same source, the Savannah vehicle was released directly to the Complainant and advised the warehouse to settle all storage charges with the Complainants, and MTL will request the invoice from the LA warehouse.

(g) Exhibit #4 is responsive to this request. For example, see p10 of such exhibit, where MTL writes to the Complainant citing warehouse storage charges. As another example, see email from MTL to the Complainant on pages 60-61 of exhibit #4, discussing the situation at the LA warehouse.

Demand #4

MTL’s answer to interrogatory#4 explains what happened with all of the 17 subject vehicles. For the 9 out of the 17 vehicles requested in this demand, the documents that have been provided are as follows: Exhibit 4 contains communications involving warehouses in Houston, Savannah and Los Angeles: these warehouses seized the vehicles for nonpayment of storage by the Complainants, therefore, any documents as to such should be directed to these warehouses. The remaining vehicles (with the exception of the vehicle with a Vin# ending in 288) have been released as “Junk” (see Exhibit “7”).

Demand #5

(a) Respondents produced what they had in response to this request.

(d) Complainants claim that a relevancy ruling was rendered on a different case, namely Docket No. 16-16. Respectfully, Respondents request a ruling on the relevancy objection as to Docket 20-12 as such involves different facts.

Demand #6

- (a) Vehicles with Vin numbers ending in 993 and 968 were not shipped but disposed as junk, as stated in MTL's answer to interrogatory #4.
- (b) See response to #6a above.
- (c) See response to #6a above.
- (d) See response to #6a above.
- (g) Documents produced via Exhibit #5 are responsive as they relate to the auto auctions and Departments of Motor Vehicles.
- (i) See response to #6a above.
- (j) See response to #6a above.
- (k) See response to #6a above.

Demand #7

- (a) The referenced answers to interrogatories explain why no documents exist.
- (b) The referenced answers to interrogatories explain why no documents exist.

Demand #8

- (a) Complainants claim that a relevancy ruling was rendered on a different case, namely Docket No. 16-16. Respectfully, Respondents request a ruling on the relevancy objection as to Docket 20-12 as such involves different facts.

- (c) MTL's answer to Interrogatory #11d makes clear that the shipping instructions were provided via telephone.
- (d) Upon information and belief, no responsive documents exist for the reasons as described in MTL's answers to Interrogatories #4 and 5(b).
- (e) MTL's answer to interrogatory #5b delineates that the Complainant abandoned these vehicles and refused to pick them up at the destination. It is submitted that since it was not, and could not be, the Complainant who provided the "notify party" as Segzymoore Auto Lounge (since again, Complainants abandoned these vehicles when they refused to pay for services), such is not relevant.
- (g) Exhibit 10 is responsive to this request. Additionally, see response to #8e above.
- (h) MTL's answer to Interrogatory #11d makes clear that the shipping instructions were provided via telephone.
- (i) Objection: Vague and not necessary to prove any of the alleged violations of the Shipping Act.
- (j) Exhibit 8 is responsive to this request.
- (k) If Complainants mean BOL#41677, then this request is being made in bad faith as Complainants refused to pick up their vehicles when such were shipped to them at their request. See Exhibit #6 as submitted to Complainants. For some reason Mr. Nussbaum did not attach this exhibit because it shows that he and his own clients have acted in bad faith in filing this matter with the Commission.

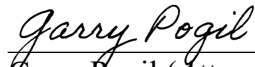
CROSS MOTION

Besides objections and referrals to the parts in their complaint, the Complainants have not produced a single document in response to the enclosed Interrogatories and Requests for Documents. (See pp 66-77 of the Appendix).

As a result of the foregoing, it is respectfully being requested that the Complainants' motion to compel should be denied and Complainants should be compelled to respond to Respondents' demand in good faith as failure to produce even a single document to the 18 requests cannot be deemed acting in good faith.

March 1, 2021

Respectfully Submitted,



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